ting forth the fact of his voluntary emigration from such port, which certificate shall be given to the master of such vessel; and the same shall not be given until such consul or consular agent is first personally satisfied by evidence of the truth of the facts therein contained. (R. S. § 2162.)

From Act Feb. 19, 1862, c. 27, § 4, 12 Stat. 341.

§ 336. Same; inquiry and certificate by consular officer. In determining whether the immigration of any subject of China, Japan, or any oriental country, to the United States, is free and voluntary, as provided by the preceding section, it shall be the duty of the consul general or consul of the United States residing at the port from which it is proposed to convey such subjects, in any vessels enrolled or licensed in the United States, or any port within the same, before delivering to the masters of any such vessels the permit or certificate provided for in such section, to ascertain whether such immigrant has entered into a contract or agreement for a term of service within the United States, for lewd and immoral purposes; and if there be such contract or agreement, the said consul general or consul shall not deliver the required permit or certificate. (Mar. 3, 1875, c. 141, § 1, 18 Stat. 477.)

§ 337. Examination of vessels. The President is empowered, in such way and at such time as he may judge proper, to direct the vessels of the United States, and the masters and commanders thereof, to examine all vessels navigated or owned in whole or in part by citizens of the United States, and registered, enrolled, or licensed under the laws thereof, whenever in the judgment of such master or commanding officer, reasonable cause exists to believe that such vessel has on board any subjects of China, Japan, or other oriental country, known as "coolies"; and, upon sufficient proof that such vessel is employed in violation of the preceding provisions, to cause her to be carried, with her officers and crew, into any port or district within the United States, and delivered to the marshal of such district, to be held and disposed of according to law. (R. S. § 2163.)

From Act Feb. 19, 1862, c. 27, § 6, 12 Stat. 341.

§ 338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void. If any citizen of the United States, or other person amenable to the laws of the United States, shall take, or cause to be taken or transported, to or from the United States any subject of China, Japan, or any oriental country, without their free and voluntary consent, for the purpose of holding them to a term of service, such citizen or other person shall be liable to be indicted therefor, and, on conviction of such offense, shall be punished by a fine not exceeding $2,000 and be imprisoned not exceeding one year; and all contracts and agreements for a term of service of such persons in the United States, whether made in advance or in pursuance of such illegal importation, and whether such importation shall have been in American or other vessels, are hereby declared void. (Mar. 3, 1875, c. 141, § 2, 18 Stat. 477.)

§ 339. Contracting to supply cooly labor. If any person shall knowingly and willfully contract, or attempt to contract, in advance or in pursuance of such illegal importation, to supply to another the labor of cooly or other person brought into the United States in violation of section 331 of this title, or of any other section of the laws prohibiting the cooly trade or of this chapter, such person shall be deemed guilty of a felony, and, upon conviction thereof, in any United States court, shall be fined in a sum not exceeding $500 and imprisoned for a term not exceeding one year. (Mar. 3, 1875, c. 141, § 4, 18 Stat. 477.)

Chapter 9.—NATURALIZATION

NATURALIZATION SERVICE

Sec.
351. Former Bureau of Naturalization; commissioner and deputy commissioner.
352. Same; supervision of naturalization of aliens.
353. Same; powers of commissioner and deputy commissioner.
354. Same; administration of oaths by members of bureau and service.
355. Same; report of expenditures. [Repealed.]
356. Regulations for execution of law; certified copies of papers as evidence.
356a. Photographic studio in New York City.

JURISDICTIONAL

357. Jurisdiction of naturalization courts.
358. Same; District Court of the United States for Puerto Rico; residence in Puerto Rico.
358a. District Court of Virgin Islands of United States.

GENERAL AND SPECIFIC LIMITATIONS OF NATURALIZATION

359. Racial limitation of naturalization; free white persons and Africans.
360. Admission of persons not citizens owing permanent allegiance to the United States.
361. Residence period necessary. [Repealed.]
362. Naturalization within thirty days preceding general election prohibited.

PERSONS INADMISSIBLE TO CITIZENSHIP

363. Persons inadmissible to citizenship; Chinese.
364. Same; anarchists or polygamists.
365. Same; persons unable to speak English.
366. Same; aliens withdrawing intention to become citizens to avoid service under Selective Draft Act not to be naturalized.
366a. Withdrawal of intention to become citizen to secure discharge from military service after November 11, 1918; effect on right to become citizen.

NATURALIZATION OF WOMEN

367. Naturalization of women; sex or marriage not a bar.
368. Same; women marrying citizens or persons becoming naturalized; procedure.
368a. Same; women marrying citizens or persons becoming naturalized; application of procedure in section 369.
368b. Same; Hawaiian woman residing in the United States.
369. Same; women who have lost citizenship by marriage to alien or by husband's loss of citizenship; procedure.
369a. Same; women losing citizenship by residence abroad after marriage to alien; women marrying aliens ineligible to citizenship.
370. Same; women married to persons ineligible to citizenship. [Repealed.]
371. Same; wife of alien declarant becoming insane before naturalization; minor children. [Repealed.]

NATURALIZATION PROCEEDINGS IN GENERAL

372. Proceedings for naturalization.
372a. Naturalization of former citizens; residence in foreign country prior to 1917.
373. Declaration of intention.
374. Same; not to be made on election day, etc. [Repealed.]
375. Same; not required from widow and minor children of aliens dying after declaration of intention. [Repealed.]
376. Same; alien seamen declarants deemed citizens for purposes of protection.
377. Same; certain aliens erroneously exercising rights and performing duties of citizenship prior to July 1, 1920.
377a. Declaration of intention; inhabitants of Virgin Islands.
377b. Declaration of intention; prerequisite to validity; establishment of permanent residence and issuance of certificate of arrival.
377c. Photographs of applicant for declaration of intention and petitioner for citizenship.
378. Alien enemies to be naturalized only under specified conditions.
379. Petition for naturalization; when required to be filed; allegations; verification by citizen witnesses.
380. Same; certificate of arrival and declaration of intention to be made a part.
380a. Certificate of arrival; fee for issuance.
380b. County defined.
381. Oath renouncing foreign allegiance and to support Constitution and laws.
382. Prerequisites to admission to citizenship; residence; character; attachment to principles of Constitution; proof.
383. Same; evidence of certain period of residence by deposition. [Repealed.]
384. Same; aliens serving on vessels of foreign registry.
385. Evidence of residence, character, and attachment to principles of Constitution; residence in Hawaiian Islands prior to June 14, 1900, equivalent to residence in United States; validating records, etc.
386. Renunciation of title or orders of nobility.
387. Citizenship training of applicants for naturalization; reimbursement for publishing citizenship textbook.
388. Filipino declarants honorably discharged from Navy, Marine Corps, or Naval Auxiliary Service; Puerto Ricans or aliens serving in Army, Navy, Marine Corps, Coast Guard, or United States Government vessels, etc.; residence.
389. Alien declarant honorably discharged from Army, Navy, etc., subsequently accepted conditionally in military or naval service; residence considered residence within United States.
390. Aliens in military service of United States on May 9, 1918, filing "overseas petition"; oath of allegiance.

Sec.
391. Persons serving in military or naval forces at termination of World War; persons honorably discharged therefrom; residence.
392. Aliens serving in military or naval forces during World War; declaration of intention; residence.
392a. Alien veterans of World War; naturalization proceeding within two years.
392b. Alien veterans residing in United States; terms, conditions, and exemptions affecting naturalization.
393. Certain aliens or persons owing permanent allegiance; jurisdiction of courts; evidence of residence, etc.
394. Hearing of certain petitions for naturalization within thirty days of election.
395. Effect of repeal of section 2166, Revised Statutes, upon aliens serving in Army prior to January 1, 1900, and honorably discharged therefrom.
396. Time for filing petition for naturalization; stated days for final action thereon; change of name.
397. Witnesses; subpoenas; notice to Commissioner of Immigration and Naturalization.
398. Final hearing on petition in open court; final order under hand of court; examination of applicant and witnesses.
399. Appearance by United States and proceedings in opposition to naturalization.
399a. Preliminary hearings upon petitions for naturalization; examiners; powers, etc.
399b. (a) Certificate of citizenship and declaration of intention; loss; mutilation or destruction; new certificate or declaration.
(b) Special certificate of citizenship; issuance; use.
(c) New certificate of citizenship on change of name of naturalized citizen.
(d) Certifications of naturalization records; authorization; admissibility as evidence.
399c. (a) Certificate of citizenship; issuance to adult claiming citizenship through naturalized parent or husband; procedure; effect.
(b) Prohibited acts under section; penalties.
(c) Application of certain sections of Title 18.
399d. Fees collected under sections 399b and 399c; disposition.
399e. Annual report by Commissioner of Immigration and Naturalization.
399f. Counsel's fee.

DUTIES OF CLERKS OF COURTS; NATURALIZATION FEES

400. Duties of clerks of courts; filing declaration of intention; forwarding duplicate certificate and names of aliens denied citizenship; penalty.
401. Same; responsibility for blank certificates of citizenship; return of defaced certificates; penalty.
402. Fees; disposition of; clerical assistance.
402a. Fees; disposition; application of section 567 of Title 28.
403. Same; when United States is at war.
404. Declarations of intention and petitions as records of court; reference in certificate to record.

VALIDATING OR CANCELING NATURALIZATION CERTIFICATES

405. Cancellation of certificates of citizenship fraudulently or illegally procured; aliens returning to country of nativity or residing permanently in foreign country; certified copy of order canceling certificate.
406. Validation of certificates of naturalization granted prior to December 31, 1918.
407. Certificates of naturalization failing to show compliance with requirements of Act March 3, 1903, validated.

NATURALIZATION FORMS

408. Naturalization forms supplied courts on requisition; certificates to be consecutively numbered.
409. Forms.

OFFENSES AND PUNISHMENT

410. Issuance of certificate of citizenship contrary to law.
411. Embezzlement of moneys received for naturalization proceedings.
412. Demand or receipt by clerk of fees or moneys other than those specified.
413. False certifications by clerk.
414. Procuring naturalization illegally; aiding unauthorized proceedings; false testimony.
415. Limitation of prosecutions for crimes.
416. Prior laws in effect for prosecution of offenses against naturalization laws.

NATURALIZATION SERVICE

Section 351. Former Bureau of Naturalization; commissioner and deputy commissioner. The Bureau of Naturalization is created and established with a Commissioner of Naturalization and a Deputy Commissioner of Naturalization. (June 29, 1906, c. 3592, § 1, 34 Stat. 596; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737.)

The Bureau of Immigration and the Bureau of Naturalization were consolidated as an Immigration and Naturalization Service at the head of which is a Commissioner of Immigration and Naturalization, by Executive Order June 10, 1933, No. 6166, § 14, set out in note to section 132 of Title 5

§ 352. Same; supervision of naturalization of aliens. The Immigration and Naturalization Service shall have charge, under the direction and control of the Secretary of Labor, of all matters concerning the naturalization of aliens. (June 29, 1906, c. 3592, § 1, 34 Stat. 596; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737; June 10, 1933, Ex. Or. 6166, § 14.)

§ 353. Same; powers of commissioner and deputy commissioner. The Commissioner of Immigration and Naturalization or, in his absence, the Deputy Commissioner of Immigration and Naturalization, shall be the administrative officer in charge of the Immigration and Naturalization Service and of the administration of the naturalization laws under the immediate direction of the Secretary of Labor, to whom be shall report directly upon all immigration and naturalization matters annually and as otherwise required, and the appointments of these two officers shall be made in the same manner as appointments to competitive classified civil-service positions. (June 29, 1906, c. 3592, § 1, 34 Stat. 596; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737; Juue 10, 1933, Ex. Or. 6166, § 14.)

§ 354. Same; administration of oaths hy memhers of bureau and service. Members of the Immigration and Naturalization Service may be designated by the Secretary of Labor to administer oaths relating to the administration of the naturalization law. (May 9, 1918, c. 69, § 1, 40 Stat. 544; June 10, 1933, Ex. Or. 6166, § 14.)

§ 355. Same; report of expenditures. [Repealed.]

This section (Act. Mar. 4, 1909, c. 299, § 1, 35 Stat. 982) was repealed by Act May 29, 1928, c. 901, § 1 (112), 45 Stat. 994.

§ 356. Regulations for execution of law; certified copies of papers as evidence. The Commissioner of Immigration and Naturalization, with the approval of the Secretary of Labor, shall make such rules and regulations and such changes in the forms prescribed by section 409 of this title as may be necessary to carry into effect the provisions of the naturalization laws. Certified copies of all papers, documents, certificates, and records required to be used, filed, recorded, or kept under any and all of the provisions of sections 372 to 383, 386 to 394, 396 to 415 of this title shall be admitted in evidence equally with the originals in any and all proceedings under said sections and in all cases in which the originals thereof might be admissible as evidence. (June 29, 1906, c. 3592, § 28, 34 Stat. 606; Mar. 2, 1929, c. 536, § 8, 45 Stat. 1515; June 10, 1933, Ex. Or. 6166, § 14.)

§ 356a. Photographic studio in New York City. The Secretary of the Treasury, upon the recommendation of the Secretary of Labor, is authorized to provide quarters, without payment of rent, in the building occupied by the Immigration and Naturalization Service in New York City, for a photographic studio operated by welfare organizations without profit and solely for the benefit of aliens seeking naturalization. Such studio shall be under the supervision of the Commissioner of Immigration and Naturalization. (May 25, 1932, c. 203, § 9, 47 Stat. 166; June 10, 1933, Ex. Or. 6166, § 14.)

JURISDICTIONAL

§ 357. Jurisdiction of naturalization courts. Exclusive jurisdiction to naturalize aliens as citizens of the United States is conferred upon the following specified courts:

United States district courts in the States, United States district courts for the Territories of Hawaii and Alaska, the Supreme Court of the District of Columbia; also all courts of record in any State or Territory having a seal, a clerk, and jurisdiction in actions at law or equity, or law and equity, in which the amount in controversy is unlimited.

The naturalization jurisdiction of all courts herein specified, State, Territorial, and Federal, shall extend only to aliens resident within the respective judicial districts of such courts. (June 29, 1906, c. 3592, § 3, 34 Stat. 596; Mar. 3, 1911, c. 231, § 289, 36 Stat. 1167; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737.)

§ 358. Same; District Court of the United States for Puerto Rico; residence in Puerto Rico. The District Court of the United States for Puerto Rico shall have jurisdiction for the naturalization of aliens and Puerto Ricans, and for this purpose residence in Puerto Rico shall be counted in the same manner as residence elsewhere in the United States. (Mar. 2, 1917, c. 145, § 41, 39 Stat. 965; May 17, 1932, c. 190, 47 Stat. 158.)

§ 358a. District Court of Virgin Islands of United States. The district court of the Virgin Islands of the United States shall have jurisdiction for naturalization purposes (including jurisdiction for the purpose of setting aside and canceling certificates of citizenship under section 405 of this title); and for the purpose of the naturalization laws residence in the Virgin Islands of the United States shall be considered as residence in the United States. (Feb. 25, 1927, c. 192, § 4, 44 Stat. 1235.)

GENERAL AND SPECIFIC LIMITATIONS OF NATURALIZATION

§ 359. Racial limitation of naturalization; free white persons and Africans. The provisions of this chapter shall apply to aliens being free white persons, and to aliens of African nativity and to persons of African descent, and nothing in sections 376 to 378, 387 to 395, or 406 of this title shall repeal or in any way enlarge this section, except as specified in sections 388 to 390, 392 to 394 of this title, and under the limitation therein defined. (R. S. § 2169; Feb. 18, 1875, c. 80, § 1, 18 Stat. 318; May 9, 1918, c. 69, § 2, 40 Stat. 547.)

R. S. § 2169 from Act July 14, 1870, c. 254, § 7, 16 Stat. 256.

§ 360. Admission of persons not citizens owing permanent allegiance to the United States. All the applicable provisions of the naturalization laws of the United States shall apply to and be held to authorize the admission to citizenship of all persons not citizens who owe permaneut allegiance to the United States, and who may become residents of any State or organized Territory of the United States, with the following modifications: The applicant shall not be required to renounce allegiance to any foreign sovereignty; he shall make his declaration of intention to become a citizen of the United States at least two years prior to his admission; and residence within the jurisdiction of the United States, owing such permanent allegiance, shall be regarded as residence within the United States within the meaning of the five years' residence clause of the existing law. (June 29, 1906, c. 3592, § 30, 34 Stat. 606.)

§ 361. Residence period necessary. [Repealed.]

This section (R. S. § 2170) was repealed by Act Mar. 2, 1929, c. 536, 45 Stat. 1514.
See section 382 of this title.

§ 362. Naturalization within thirty days preceding general election prohibited. No person shall be naturalized nor shall any certificate of naturalization be issued by any court within thirty days preceding the holding of any general election within its territorial jurisdiction. (June 29, 1906, c. 3592, § 6, 34 Stat. 598.)

PERSONS INADMISSIBLE TO CITIZENSHIP

§ 363. Persons inadmissible to citizenship; Chinese. No State court or court of the United States shall admit Chinese to citizenship. (May 6, 1882, c. 126, § 14, 22 Stat. 61.)

§ 364. Same; anarchists or polygamists. No person who disbelieves in or who is opposed to organized government, or who is a member of or affiliated with any organization entertaining and teaching such disbelief in or opposition to organized government, or who advocates or teaches the duty, necessity, or propriety of the unlawful assaulting or killing of any officer or officers, either of specific individuals or of officers generally, of the Government of the United States, or of any other organized government, because of his or their official character, or who is a polygamist, shall be naturalized or be made a citizen of the United States. (June 29, 1906, c. 3592, § 7, 34 Stat. 598.)

§ 365. Same; persons unable to speak English. No alien shall be naturalized or admitted as a citizen of the United States who cannot speak the English language. This requirement shall not apply to aliens who are physically unable to comply therewith, if they are otherwise qualified to become citizens of the United States. The reqnirements of this section shall not apply to any alien who has prior to June 29, 1906, declared his intentiou to become a citizen of the United States in conformity with the law in force at the date of making such declaration; nor shall they apply to aliens who shall, after June 29, 1906, declare their intention to become citizens and who shall make homestead entries upon the public lands of the United States and comply in all respects with the laws providing for homestead entries on such lands. (June 29, 1906, c. 3592, § 8, 34 Stat. 599.)

§ 366. Same; aliens withdrawing intention to become citizens to avoid service under Selective Draft Act not to be naturalized. A citizen or subject of a country neutral in the World War who has declared his intention to become a citizen of the United States, shall be relieved from liability to military service upon his making a declaration, in accordance with such regulations as the President may prescribe, withdrawing his intention to become a citizen of the United States, which shall operate and be held to cancel his declaration of intention to become an American citizen and he shall forever be debarred from becoming a citizen of the United States. (May 18, 1917, c. 15, § 2, 40 Stat. 77; July 9, 1918, c. 143, subchapter XII, § 4, 40 Stat. 885.)

§ 366a. Withdrawal of intention to become citizen to secure discharge from military service after November 11, 1918; effect on right to become citizen. Notwithstanding any provision of law to the contrary, no alien shall be debarred from becoming a citizen of the United States on the ground that he withdrew his intention to become a citizen of the United States in order to secure discharge from the military service, if such withdrawal (and the application therefor) and discharge took place after November 11, 1918. (Feb. 11, 1931, c. 118, 46 Stat. 1087.)

NATURALIZATION OF WOMEN

§ 367. Naturalization of women; sex or marriage not a bar. The right of any woman to become a naturalized citizen of the United States shall not be denied or abridged because of her sex or because she is a married woman. (Sept. 22, 1922, c. 411, § 1, 42 Stat. 1021.)

§ 368. Same; women marrying citizens or persons becoming naturalized; procedure. An alien who marries a citizen of the United States, after May 24, 1934, or an alien whose husband or wife is naturalized after May 24, 1934, shall not become a citizen of the United States by reason of such marriage or naturalization; but, if eligible to citizenship, be or she may be naturalized upon full and complete compliance with all requirements of the naturalization laws, with the following exceptions:

(a) No declaration of intention shall be required.

(b) In lieu of the five-year period of residence within the United States and the one-year period of residence within the State or Territory where the naturalization court is held, he or she shall have resided continuously in the United States, Hawaii, Alaska, or Puerto Rico for at least three years immediately preceding the filing of the petition. (Sept. 22, 1922, c. 411, § 2, 42 Stat. 1022; May 17, 1932, c. 190, 47 Stat. 158; May 24, 1934, c. 344, § 4, 48 Stat. 797.)

§ 368a. Same; women marrying citizens or persons becoming naturalized; application of procedure in section 369. No woman shall be entitled to naturalization under section 369 of this title, if her United States citizenship originated solely by reason of her marriage to a citizen of the United States or by reason of the acquisition of United States citizenship

by her husband. (Sept. 22, 1922, c. 411, § 3 (c), 42 Stat. 1022, as amended Mar. 3, 1931, c. 442, § 4 (a), 46 Stat. 1511.)

§ 368b. Same; Hawaiian woman residing in the United States. For the purposes of section 369a of of this title, a woman born in Hawaii prior to June 14, 1900, shall, if residing in the United States on July 2, 1932, be considered to have been a citizen of the United States at birth. (July 2, 1932, c. 395, 47 Stat. 571.)

§ 369. Same; woman who has lost citizenship by marriage to alien or by husband's loss of citizenship; procedure. (a) A woman who has lost her United States citizenship by reason of her marriage to an alien eligible to citizenship or by reason of the loss of United States citizenship by her husband may, if eligible to citizenship and if she has not acquired any other nationality by affirmative act, be naturalized upon full and complete compliance with all requirements of the naturalization laws, with the following exceptions:

(1) No declaration of intention and no certificate of arrival shall be required, and no period of residence within the United States or within the county where the petition is filed shall be required;

(2) The petition need not set forth that it is the intention of the petitioner to reside permanently within the United States;

(3) The petition may be filed in any court having naturalization jurisdiction, regardless of the residence of the petitioner;

(4) If there is attached to the petition, at the time of filing, a certificate from a naturalization examiner stating that the petitioner has appeared before him for examination, the petition may be heard at any time after filing.

(b) After her naturalization such woman shall have the same citizenship status as if her marriage, or the loss of citizenship by her husband, as the case may be, had taken place after July 3, 1930. (Sept. 22, 1922, c. 411, § 4, 42 Stat. 1022; July 3, 1930, c. 835, § 2 (a), 46 Stat. 854.)

§ 369a. Same; women losing citizenship by residence abroad after marriage to alien; women marrying aliens ineligible to citizenship. Any woman who before March 3, 1931, has lost her United States citizenship by residence abroad after marriage to an alien or by marriage to an alien ineligible to citizenship may, if she has not acquired any other nationality by affirmative act, be naturalized in the manner prescribed in section 369 of this title. Any woman who was a citizen of the United States at birth shall not be denied naturalization under section 369 on account of her race. (Sept. 22, 1922, c. 411, § 3 (b), 42 Stat. 1022; Mar. 3, 1931, c. 442, § 4 (a), 46 Stat. 1511.)

§ 370. Same; women married to persons ineligible to citizenship. [Repealed.]

This section (Act Sept. 22, 1922, c. 411, § 5, 42 Stat. 1022) was repealed by Act Mar. 3, 1931, c. 442, § 4 (b), 46 Stat. 1512.

§ 371. Same; wife of alien declarant becoming insane before naturalization; minor children. [Repealed.]

This section (Act Feb. 24, 1911, c. 151, 36 Stat. 929) was repealed by Act May 24, 1934, c. 344, § 5, 48 Stat. 798.

NATURALIZATION PROCEEDINGS IN GENERAL

§ 372. Proceedings for naturalization. An alien may be admitted to become a citizen of the United States in the manner indicated under sections 372 to 394 of this title and not otherwise. (June 29, 1906, c. 3592, § 4, 34 Stat. 596.)

§ 372a. Naturalization of former citizens; residence in foreign country prior to 1917. (a) Any person, born in the United States, who had established permanent residence in a foreign country prior to January 1, 1917, and who has prior to March 3, 1931, lost his United States citizenship by becoming naturalized under the laws of such foreign country, may, if eligible to citizenship and if, prior to March 3, 1931, he has been admitted to the United States for permanent residence, be naturalized upon full and complete compliance with all of the requirements of the naturalization laws, with the following exceptions:

(1) The five-year period of residence within the United States shall not be required;

(2) The declaration of intention may be made at any time after admission to the United States, and the petition may be filed at any time after the expiration of six months following the declaration of intention;

(3) If there is attached to the petition, at the time of filing, a certificate from a naturalization examiner stating that the petitioner has appeared before him for examination, the petition may be heard at any time after filing.

(b) After naturalization such person shall have the same citizenship status as immediately preceding the loss of United States citizenship. (Mar. 3, 1931, c. 442, § 3, 46 Stat. 1511.)

See sections 368 and 369 of this title.

§ 373. Declaration of intention. He shall declare on oath before the clerk of any court authorized to naturalize aliens, or his authorized deputy, in the district in which such alien resides, two years at least prior to his admission, and after he has reached the age of eighteen years, that it is bona fide his intention to become a citizen of the United States and to reside permanently therein, and that he will, before being admitted to citizenship, renounce forever all allegiance and fidelity to any foreign prince, potentate, State, or sovereignty, and particularly, by name, to the prince, potentate, State, or sovereignty of which the alien may be at the time of admission a citizen or subject. Such declaration shall set forth the name, age, occupation, personal description, place of birth, last foreign residence, the date of arrival, the name of the vessel, if any, in which he came to the United States, and the present place of residence in the United States of said alien. No declaration of intention or petition for naturalization shall be made outside of the office of the clerk of court. (June 29, 1906, c. 3592, § 4, 34 Stat. 596; Mar. 4, 1929, c. 683, § 1, 45 Stat. 1545.)

§ 374. Declaration of intention; not to be made on election day, etc. [Repealed.]

This section (Act June 29, 1906, c. 3592, § 4 (7); Act May 9, 1918, c. 69, § 1, 40 Stat. 544) was repealed by Act May 25, 1926, c. 388, § 1, 44 Stat. 652.

§ 375. Same; not required from widow and minor children of aliens dying after declaration of intention. [Repealed.]

This section (Act June 29, 1906, c. 3592, § 4, 34 Stat. 597) was repealed by Act May 24, 1934, c. 344, § 5, 48 Stat. 798.

§ 376. Same; alien seamen declarants deemed citizens for purposes of protection. Every seaman being an alien, shall, after his declaration of intention to become a citizen of the United States, and after he shall have served three years upon merchant or fishing vessels of the United States of more than twenty tons burden, as described under sections 388 and 393 of this title, be deemed a citizen of the United States for the purpose of serving on board any such merchant or fishing vessel of the United States, anything to the contrary in any Act of Congress notwithstanding; but such seaman shall, for all purposes of protection as an American citizen, be deemed such after the filing of his declaration of intention to become such citizen. Nothing contained in this chapter shall be taken nor construed to repeal or modify any portion of sections 365, 366 of Title 33, or of sections 481, 569, 596, 597, 599, 601, 656, 672, 673, 683, 688, 701, 703, 712, or 713 of Title 46, to promote the welfare of American seamen. (June 29, 1906, c. 3592, § 4 (8); May 9, 1918, c. 69, § 1, 40 Stat. 544.)

§ 377. Same; certain aliens erroneously exercising rights and performing duties of citizenship prior to July 1, 1920. Any person not an alien enemy, who resided uninterruptedly within the United States during the period of five years next preceding July 1, 1920, and was on that date otherwise qualified to become a citizen of the United States, except that he had not made a declaration of intention required by

law and who during or prior to that time, because of misinformation regarding his citizenship status erroneously exercised the rights and performed the duties of a citizen of the United States in good faith, may file the petition for naturalization prescribed by law without making the preliminary declaration of intention required of other aliens, and upon satisfactory proof to the court that he has so acted may be admitted as a citizen of the United States upon complying in all respects with the other requirements of the naturalization law. (June 29, 1906, c. 3592, § 4 (10); May 9, 1918, c. 69, § 1, 40 Stat. 545; May 25, 1932, c. 203, § 10, 47 Stat. 166.)

§ 377a. Declaraton of intention; inhabitants of Virgin Isands. The following persons, if not ineligible to citizenship, may, upon petition filed within one year after February 25, 1927, and upon full and complete compliance with all other provisions of the naturalization laws, be naturalized without making a declaration of intention:

(a) All natives of the Virgin Islands of the United States who, on January 17, 1917, resided in those islands or in the United States, and who are now residing in those islands or in the United States or Puerto Rico, and who are citizens or subjects of any foreign country;

(b) All natives of the Virgin Islands of the United States who, on January 17, 1917, resided in the United States, and are now residing in the United States or Puerto Rico, and who are not citizens or subjects of any foreign country; and

(c) Except as otherwise provided in this section or in section 5b of this title, all persons who, on January 17, 1917, resided in the Virgin Islands of the United States, and are now residing in those islands, and who are not citizens of the United States. (Feb. 25, 1927, c. 192, § 2, 44 Stat. 1234; May 17, 1932, c. 190, 47 Stat. 158.)

§ 377b. Declaration of intention; prerequisite to validity; establishment of permanent residence and issuance of certificate of arrival. No declaration of intention shall be made by any alien under this chapter, or, if made, be valid, until the lawful entry for permanent residence of such alien shall have been established, and a certificate showing the date, place, and manner of his arrival shall have been issued; except that no such certificate shall be required if the entry was on or before June 29, 1906. (Mar. 2, 1929, c. 536, § 4, 45 Stat. 1513; May 25, 1932, c. 203, § 6, 47 Stat. 166.)

§ 377c. Photographs of applicant for declaration of intention and petitioner for citizenship. Two photographs of himself shall be furnished by each applicant for a declaration of intention and by each petitioner for citizenship. One of such photographs shall be affixed by the clerk of the court to the declaration of intention issued to the declarant and one to the declaration of intention required to be forwarded to the Immigration and Naturalization Service; and one of such photographs shall be affixed to the certificate of citizenship issued to the naturalized citizen and one to the duplicate certificate of citizenship required to be forwarded to the Immigration and Naturalization Service. (June 29, 1906, c. 3592, § 36; Mar. 2, 1929, c. 536, § 9, 45 Stat. 1516; June 10, 1933, Ex. Or. 6166, § 14.)

§ 378. Alien enemies to be naturalized only under specified conditions. No alien who is a native, citizen, subject, or denizen of any country, state, or sovereignty with which the United States is at war shall be admitted to become a citizen of the United States unless he made his declaration of intention not less than two nor more than seven years prior to the existence of the state of war or was at that time entitled to become a citizen of the United States, without making a declaration of intention, or unless his petition for naturalization shall then be pending and is otherwise entitled to admission, notwithstanding he shall be an alien enemy at the time and in the manner prescribed by the laws passed upon that subject. No alien embraced within this subdivision shall have his petition for naturalization called for a hearing, or heard, except after ninety days' notice given by the clerk of the court to the Commissioner or Deputy Commissioner of Immigration and Naturalization to be present, and the petition shall be given no final hearing except in open court and after such notice to the representative of the Government from the Immigration and Naturalization Service, whose objection shall cause the petition to be continued from time to time for so long as the Government may require. Nothing herein contained shall be taken or construed to interfere with or prevent the apprehension and removal, agreeably to law, of any alien enemy at any time previous to the actual naturalization of such alien. The President of the United States may, in his discretion, upon investigation and report by the Department of Justice fully establishing the loyalty of any alien enemy not included in the foregoing exemption, except such alien enemy from the classification of alien enemy, and thereupon he shall have the privilege of applying for naturalization. (June 29, 1906, c. 3592, § 4 (11); June 10, 1933, Ex. Or. 6166, § 14; May 9, 1918, c. 69, § 1, 40 Stat. 545.)

§ 379. Petition for naturalization; when required to he filed; allegations; verification by citizen witnesses. Not less than two years nor more than seven years after he has made such declaration of intention he shall make and file, in duplicate, a petition in writing, signed by the applicant in his own handwriting and duly verified, in which petition such applicant shall state his full name, his place of residence (by street and number, if possible), his occupation, and, if possible, the date and place of his birth; the place from which he emigrated, and the date and place of his arrival in the United States, and, if he entered through a port, the name of the vessel on which he arrived; the time when and the place and name of the court where he declared his intention to become a citizen of the United States; if he is married he shall state the name of his wife and, if possible, the country of her nativity and her place of residence at the time of filing his petition; and if he has children, the name, date, and place of birth and place of residence of each child living at the time of the filing of his petition: *Provided*, That if he has filed his declaration before June 29, 1906, he shall not be required to sign the petition in his own handwriting.

The petition shall set forth that he is not a disbeliever in or opposed to organized government, or a member of or affiliated with any organization or body of persons teaching disbelief in or opposed to organized government, a polygamist or believer in the practice of polygamy, and that it is his intention to become a citizen of the United States and to renounce absolutely and forever all allegiance and fidelity to any foreign prince, potentate, state, or sovereignty, and particularly by name to the prince, potentate, state, or sovereignty of which he at the time of filing of his petition may be a citizen or subject, and that it is his intention to reside permanently within the United States, and whether or not he has been denied admission as a citizen of the United States, and, if denied, the ground or grounds of such denial, the court or courts in which such decision was rendered, and that the cause for such denial has since been cured or removed, and every fact material to his naturalization and required to be proved upon the final hearing of his application.

As to each period of residence at any place in the county where the petitioner resides at the time of filing his petition, there shall be included in the petition the affidavits of at least two credible witnesses, citizens of the United States, stating that each has personally known the petitioner to have been a resident at such place for such period, and that the petitioner is and during all such period has been a person of good moral character. (June 29, 1906, c. 3592, § 4, 34 Stat. 596; Mar. 2, 1929, c. 536, § 6 (a), 45 Stat. 1513.)

§ 380. Same; certificate of arrival and declaration of intention to be made a part. At the time of filing

his petition there shall be filed with the clerk of the court a certificate from the Department of Labor, if the petitioner arrived in the United States after June 29, 1906, stating the date, place, and manner of his arrival in the United States and the declaration of intention of such petitioner, which certificate and declaration shall be attached to and made a part of such petition. (June 29, 1906, c. 3592, § 4, 34 Stat. 596; Mar. 4, 1913, c. 14, § 3, 37 Stat. 737.)

§ 380a. Certificate of arrival; fee for issuance. For every certificate of arrival issued for naturalization purposes a fee of $2.50 shall be paid to the Commissioner of Immigration and Naturalization, which fee shall be paid over to and deposited in the Treasury in the same manner as other naturalization fees. (Mar. 2, 1929, c. 536, § 5, 45 Stat. 1513; June 10, 1933, Ex. Or. 6166, § 14; Apr. 19, 1934, c. 154, § 3, 48 Stat. 597.)

§ 380b. County defined. When used in sections 379, 382, and 388 of this title the term "county" includes parish in the State of Louisiana; any political subdivision of a State not included within any county; a division of the judicial district in the Territory of Alaska; the entire island in the case of Puerto Rico; the entire territory comprised within the Virgin Islands in the case of the Virgin Islands; and the entire district in the case of the District of Columbia. (June 29, 1906, c. 3592, § 35, as added Mar. 2, 1929, c. 536, § 9, 45 Stat. 1516; May 17, 1932, c. 190, 47 Stat. 158.)

§ 381. Oatb renouncing foreign allegiance and to support Constitution and laws. He shall, before he is admitted to citizenship, declare on oath in open court that he will support the Constitution of the United States, and that he absolutely and entirely renounces and abjures all allegiance and fidelity to any foreign prince, potentate, state, or sovereignty, and particularly by name to the prince, potentate, state, or sovereignty of which he was before a citizen or subject; that he will support and defend the Constitution and laws of the United States against all enemies, foreigu and domestic, and bear true faith and allegiance to the same. (June 29, 1906, c. 3592, § 4, 34 Stat. 596.)

§ 382. Prerequisites to admission to citizenship; residence; character; attachment to principles of Constitution; proof. No alien shall be admitted to citizenship unless (1) immediately preceding the date of his petition the alien has resided continuously within the United States for at least five years and within the county where the petitioner resided at the time of filing his petition for at least six months, (2) he has resided continuously within the United States from the date of his petition up to the time of his admission to citizenship, and (3) during all the periods referred to in this section he has behaved as a person of good moral character, attached to the principles of the Constitution of the United States, and well disposed to the good order and happiness of the United States. At the hearing of the petition, residence in the county where the petitioner resides at the time of filing his petition, and the other qualifications required by this section during such residence, shall be proved by the oral testimony of at least two credible witnesses, citizens of the United States, in addition to the affidavits required by section 379 of this title to be included in the petition. If the petitioner has resided in two or more places in such county and for this reason two witnesses cannot be procured to testify as to all such residence, it may be proved by the oral testimony of two such witnesses for each such place of residence, in addition to the affidavits required by section 379 of this title to be included in the petition. At the hearing, residence within the United States but outside the county, and the other qualifications required by this section during such residence shall be proved either by depositions made before a naturalization examiner or by the oral testimony of at least two such witnesses for each place of residence.

If an individual returns to the country of his allegiance and remains therein for a continuous period of more than six months and less than one year during the period immediately preceding the date of filing the petition for citizenship for which continuous residence is required as a condition precedent to admission to citizenship, the continuity of such residence shall be presumed to be broken, but such presumption may be overcome by the presentation of satisfactory evidence that such individual had a reasonable cause for not returning to the United States prior to the expiration of such six months. Absence from the United States for a continuous period of one year or more during the period immediately preceding the date of filing the petition for citizenship for which continuous residence is required as a condition precedent to admission to citizenship shall break the continuity of such residence. (June 29, 1906, c. 3592, § 4, 34 Stat. 596; Mar. 2, 1929, c. 536, § 6 (b), 45 Stat. 1513.)

§ 383. Same; evidence of certain period of residence by deposition. [Repealed.]

This section (Act June 29, 1906, c. 3592, § 10, 34 Stat. 599) was repealed by Act Mar. 2, 1929, c. 536, § 6 (e), 45 Stat. 1514.

§ 384. Same; aliens serving on vessels of foreign registry. Service by aliens upon vessels other than of American registry, whether continuous or broken, shall not be considered as residence for naturalization purposes within the jurisdiction of the United States, and such aliens cannot secure residence for naturalization purposes during service upon vessels of foreign registry; except that this section shall not apply in the case of service on American-owned vessels by an alien who has been lawfully admitted to the United States for permanent residence. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 544; May 25, 1932, c. 203, § 3, 47 Stat. 165.)

§ 385. Evidence of residence, character and attachment to principles of Constitution; residence in Hawaiian Islands prior to June 14, 1900, equivalent to residence in United States; validating records, etc. For the purposes of naturalization under the laws of the United States residence in the Hawaiian Islands prior to June 14, 1900, shall be deemed equivalent to residence in the United States and in the Territory of Hawaii, and the requirement of a previous declaration of intention to become a citizen of the United States and to renounce former allegiance shall not apply to persons who have resided in said Islauds at least five years prior to June 14, 1900; but all other provisions of the laws of the United States relating to naturalization shall, so far as applicable, apply to persons in the said islands.

All records relating to naturalization, all declarations of intention to become citizens of the United States, and all certificates of naturalization filed, recorded, or issued prior to September 27, 1906, in or from any circuit court of the Territory of Hawaii, shall for all purposes be deemed to be and to have been made, filed, recorded, or issued by a court with jurisdiction to naturalize aliens, but shall not be by this section further validated or legalized. (Apr. 30, 1900, c. 339, § 100, 31 Stat. 161; May 27, 1910, c. 258, § 9, 36 Stat. 448.)

§ 386. Renunciation of title or orders of nobility. In case the alien applying to be admitted to citizenship has borne any hereditary title, or has been of any of the orders of nobility in the kingdom or state from which he came, he shall, in addition to the above requisites, make an express renunciation of his title or order of nobility in the court to which his application is made, and his renunciation shall be recorded in the court. (June 29, 1906, c. 3592, § 4, 34 Stat. 596.)

§ 387. Citizenship training of applicants for naturalization; reimbursement for publishing citizenship textbook. For the purpose of carrying on the work of the Immigration and Naturalization Service of sending the names of the candidates for citizenship to the public schools and otherwise promoting instruction and training in citizenship respousibilities of applicants for naturalization, as provided in this subdivision, authority is given for the reimbursement of the printing and binding appropriation of the Department of Labor upon the records of the Treasury Department from the naturalization fees deposited in

the Treasury through the Immigration and Naturalization Service for the cost of publishing the citizenship textbook prepared and to be distributed by the Immigration and Naturalization Service to those candidates for citizenship only who are in attendance upon the public schools, such reimbursement to be made upon statements by the Commissioner of Immigration and Naturalization of books actually delivered to such student candidates for citizenship, and a monthly naturalization bulletin, and in this duty to secure the aid of and cooperate with the official State and national organizations, including those concerned with vocational education and including personal services in the District of Columbia. (June 29, 1906, c. 3592, § 4 (9); May 9, 1918, c. 69, § 1, 40 Stat. 544; June 10, 1933, Ex. Or. 6166, § 14.)

Effective July 1, 1935, the appropriation provided for in this section was affected by Act June 26, 1934, c. 756, § 4, 48 Stat. 1227. See section 725c (b) of Title 31.

§ 388. Filipino declarants honorably discharged from Navy, Marine Corps, or Naval Auxiliary Service; Puerto Ricans or aliens serving in Army, Navy, Marine Corps, Coast Guard, or United States Government vessels, etc.; residence. Any native-born Filipino of the age of twenty-one years and upward who has declared his intention to become a citizen of the United States and who has enlisted or may enlist in the United States Navy or Marine Corps or the Naval Auxiliary Service, and who, after service of not less than three years, may be honorably discharged therefrom, or who may receive an ordinary discharge with recommendation for reenlistment; or any alien, or any Puerto Rican not a citizen of the United States, of the age of twenty-one years and upward, who has enlisted or entered or may hereafter enlist in or enter the armies of the United States, either the Regular or the Volunteer Forces, or the National Army, or in the United States Navy or Marine Corps, or in the United States Coast Guard, or who has served for three years on board of any vessel of the United States Government, or for three years on board vessels of more than twenty tons burden, whether or not documented under the laws of the United States, and whether public or private, which are not foreign vessels, and while still in the service on a reenlistment or reappointment, or within six months after an honorable discharge or separation therefrom, may, on presentation of the required declaration of intention petition for naturalization and may be naturalized without complying with the requirements of residence within the United States and within the county. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 542; June 4, 1920, c. 227, § 30, 41 Stat. 775; Mar. 2, 1929, c. 536, § 6 (c), (d), 45 Stat. 1514; May 17, 1932, c. 190, 47 Stat. 158; May 25, 1932, c. 203, § 2 (a), 47 Stat. 165.)

§ 389. Alien declarant honorably discharged from Army, Navy, etc., subsequently accepted conditionally in military or naval service; residence considered residence within United States. Any alien declarant who has served in the United States Army or Navy, or the Philippine Constabulary, and has been honorably discharged therefrom, and has been accepted for service in either the military or naval service of the United States on the condition that he becomes a citizen of the United States, may file his petition for naturalization upon proof of continuous residence within the United States for the three years immediately preceding his petition, by two witnesses, citizens of the United States, and in these cases only residence in the Philippine Islands and the Panama Canal Zone by aliens may be considered residence within the United States, and the place of such military service shall be construed as the place of residence required to be established for purposes of naturalization. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 542.)

§ 390. Aliens in military service of United States on May 9, 1918, filing "overseas petition"; oath of allegiance. Any alien, who, on May 9, 1918, was in the military service of the United States, and who may not be within the jurisdiction of any court authorized to naturalize aliens, may file his petition for naturalization without appearing in person in the office of the clerk of the court and shall not be required to take the prescribed oath of allegiance in open court. The petition shall be verified by the affidavits of at least two creditable witnesses who are citizens of the United States, and who shall prove in their affidavits the portion of the residence that they have personally known the applicant to have resided within the United States. The time of military service may be established by the affidavits of at least two other citizens of the United States, which, together with the oath of allegiance, may be taken in accordance with the terms of section 131 of title 22 after notice from and under regulations of the Immigration and Naturalization Service. Such affidavits and oath of allegiance shall be admitted in evidence in any original or appellate naturalization proceeding without proof of the genuineness of the seal or signature or of the official character of the officer before whom the affidavits and oath of allegiance were taken, and shall be filed by the representative of the Government from the Immigration and Naturalization Service at the hearing as provided by section 399 of this title. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 543; June 10, 1933, Ex. Or. 6166, § 14.)

§ 391. Persons serving in military or naval forces at termination of World War; persons honorably discharged therefrom; residence. Any person who was serving in the military or naval forces of the United States at the termination of the World War, and any person who before the termination of said war may have been honorably discharged from the military or naval services of the United States on account of disability incurred in line of duty, shall, if he applies to the proper court for admission as a citizen of the United States, be relieved from the necessity of proving that immediately preceding the date of his application he has resided continuously within the United States the time required by law of other aliens, or within the State, Territory, or the District of Columbia for the year immediately preceding the date of his petition for naturalization, but his petition for naturalization shall be supported by the affidavits of two credible witnesses, citizens of the United States, identifying the petitioner as the person named in the certificate of honorable discharge, which said certificate may be accepted as evidence of good moral character required by law, and he shall comply with the other requirements of the naturalization law. (June 29, 1906, c. 3592, § 4 (13); May 9, 1918, c. 69, § 1, 40 Stat. 544.)

§ 392. Aliens serving in military or naval forces during World War; declaration of intention; residence. Any alien who served in the military or naval service of the United States during the time this country was engaged in the World War, might file his petition for naturalization without making the preliminary declaration of intention and without proof of the required five years' residence within the United States. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 542.)

§ 392a. Alien veterans of World War; naturalization proceeding within two years. An alien veteran, as defined in section 241 of this title, shall, if residing in the United States, be entitled, at any time within two years after March 4, 1929, to naturalization upon the same terms, conditions, and exemptions which would have been accorded to such alien if he had petitioned before the armistice of the World War, except that such alien shall be required to appear and file his petition in person and to take the prescribed oath of allegiance in open court. (May 26, 1926, c. 398, § 7, 44 Stat. 655; Mar. 4, 1929, c. 683, § 3, 45 Stat. 1546.)

See section 392b of this title.

§ 392b. Alien veterans residing in United States; terms, conditions, and exemptions affecting naturalization. (a) An alien veteran, as defined in section 241 of this title, shall, if residing in the United States, be entitled at any time within two years after

May 25, 1932, to naturalization upon the same terms, conditions, and exemptions which would have been accorded to such alien if he had petitioned before the armistice of the World War, except that (1) such alien shall be required to prove that immediately preceding the date of his petition he has resided continuously within the United States for at least two years, in pursuance of a legal admission for permanent residence, and that during all such period he has behaved as a person of good moral character; (2) if such admission was subsequent to March 3, 1924, such alien shall file with his petition a certificate of arrival issued by the Commissioner of Immigration and Naturalization; (3) final action shall not be had upon the petition until at least ninety days have elapsed after filing of such petition; and (4) such alien shall be required to appear and file his petition in person, and to take the prescribed oath of allegiance in open court. Such residence and good moral character shall be proved either by the affidavits of two credible witnesses who are citizens of the United States, or by depositions by two such witnesses made before a naturalization examiner, for each place of residence.

(b) All petitions for citizenship made outside the United States in accordance with section 390 of this title, upon which naturalization has not been granted prior to May 25, 1932, are hereby declared to be invalid for all purposes. (May 25, 1932, c. 203, § 1, 47 Stat. 165; June 10, 1933, Ex. Or. 6166, § 14.)

§ 393. Certain aliens or persons owing permanent allegiance; jurisdiction of courts; evidence of residence, etc. Any alien, or any person owing permanent allegiance to the United States embraced within sections 388 to 390, 392 to 394 of this title, may file his petition for naturalization in the most convenient court without proof of residence within its jurisdiction, notwithstanding the limitation upon the jurisdiction of the courts specified in section 357 of this title, provided he appears with his two witnesses before the appropriate representative of the Immigration and Naturalization Service and passes the preliminary examination hereby required before filing his petition for naturalization in the office of the clerk of the court, and in each case the record of this examination shall be offered in evidence by the representative of the Government from the Immigration and Naturalization Service and made a part of the record at the original and any subsequent hearings; and, except as otherwise herein provided, the honorable discharge certificate of such alien, or person owing permanent allegiance to the United States, or the certificate of service showing good conduct, signed by a duly authorized officer, or by the masters of said vessels, shall be deemed prima facie evidence to satisfy all of the requirements of residence within the United States and within the State, Territory, or the District of Columbia, and good moral character required by law, when supported by the affidavits of two witnesses, citizens of the United States, identifying the applicant as the person named in the certificate or honorable discharge, and in those cases only where the alien is actually in the military or naval service of the United States, the certificate of arrival shall not be filed with the petition for naturalization in the manner prescribed. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 543; June 10, 1933, Ex. Or. 6166, § 14.)

§ 394. Hearing of certain petitions for naturalization within thirty days of election. Any petition for naturalization filed under the provisions of sections 388 to 390, 392 to 394 of this title, may be heard immediately, notwithstanding the law prohibits the hearing of a petition for naturalization during thirty days preceding any election in the jurisdiction of the court. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 543.)

§ 395. Effect of repeal of section 2166, Revised Statutes, upon aliens serving in Army prior to January 1, 1900, and honorably discharged therefrom. As to all aliens who, prior to January 1, 1900, served in the armies of the United States, and who were honorably discharged therefrom, section 2166 of the Revised Statutes of the United States—which read as follows: "Any alien, of the age of twenty-one years and upward, who has enlisted, or may enlist, in the armies of the United States, either the Regular or the Volunteer Forces, and has been, or may be hereafter, honorably discharged, shall be admitted to become a citizen of the United States, upon his petition, without any previous declaration of his intention to become such; and he shall not be required to prove more than one year's residence within the United States previous to his application to become such citizen; and the court admitting such alien shall, in addition to such proof of residence and good moral character, as now provided by law, be satisfied by competent proof of such person's having been honorably discharged from the service of the United States"—shall be and remain in full force and effect. (May 9, 1918, c. 69, § 2, 40 Stat. 547.)

§ 396. Time for filing petition for naturalization; stated days for final action thereon; change of name. Petitions for naturalization may be made and filed during term time or vacation of the court and shall be docketed the same day as filed, but final action thereon shall be had only on stated days, to be fixed by rule of the court, and in no case shall final action be had upon a petition until at least ninety days have elapsed after filing of such petition. No person shall be naturalized nor shall any certificate of naturalization be issued by any court within thirty days preceding the holding of any general election within its territorial jurisdiction. It shall be lawful, at the time and as a part of the naturalization of any alien, for the court, in its discretion, upon the petition of such alien, to make a decree changing the name of said alien, and his certificate of naturalization shall be issued to him in accordance therewith. (June 29, 1906, c. 3592, §6, 34 Stat. 598; Mar. 3, 1931, c. 442, § 2, 46 Stat. 1511.)

§ 397. Witnesses; subpoenas; notice to Commissioner of Naturalization. The clerk of the court shall, if the petitioner requests it at the time of filing the petition for citizenship, issue a subpoena for the witnesses named by such petitioner to appear upon the day set for the final hearing, but in case such witnesses cannot be produced upon the final hearing other witnesses may be summoned upon notice to the Immigration and Naturalization Service in such manner and at such time as the Commissioner of Immigration and Naturalization, with the approval of the Secretary of Labor, may by regulation prescribe. (June 29, 1906, c. 3592, § 5, 34 Stat. 598; June 10, 1933, Ex. Or. 6166, § 14; Mar. 3, 1931, c. 442, § 1, 46 Stat. 1511.)

§ 398. Final hearing on petition in open court; final order under hand of court; examination of applicant and witnesses. Every final hearing upon a petition for naturalization shall be had in open court before a judge or judges thereof, and every final order which may be made upon such petition shall be under the hand of the court and entered in full upon a record kept for that purpose, and upon such final hearing of such petition the applicant and witnesses shall be examined under oath before the court and in the presence of the court. (June 29, 1906, c. 3592, § 9, 34 Stat. 599.)

§ 399. Appearance by United States and proceedings in opposition to naturalization. The United States shall have the right to appear before any court or courts exercising jurisdiction in naturalization proceedings for the purpose of cross-examining the petitioner and the witnesses produced in support of his petition concerning any matter touching or in any way affecting his right to admission to citizenship, and shall have the right to call witnesses, produce evidence, and be heard in opposition to the granting of any petition in naturalization proceedings. (June 29, 1906, c. 3592, § 11, 34 Stat. 599.)

§ 399a. Preliminary hearings upon petitions for naturalization; examiners; powers, etc. (a) The judge of any United States district court, or the senior judge of such court if there are more judges than one, is hereby authorized, in his discretion, to

designate one or more examiners or officers of the Immigration and Naturalization Service serving as such examiner or officer within the territorial jurisdiction of such court, to conduct preliminary hearings upon petitions for naturalization to such court, and to make findings and recommendations thereon. For such purposes any such designated examiner or officer is hereby authorized to take testimony concerning any matter touching or in any way affecting the admissibility of any petitioner for naturalization, to subpoena witnesses, and to administer oaths, including the oath of the petitioner to his petition and the oath of his witnesses.

(b) The findings of any such designated examiner or officer upon any such preliminary hearing shall be submitted to the court at the final hearing upon the petition required by section 398 of this title, with a recommendation that the petition be granted or denied or continued, with the reasons therefor. Such findings and recommendations shall be accompanied by duplicate lists containing the names of the petitioners, classified according to the character of the recommendations, and signed by the designated examiner or officer. The judge to whom such findings and recommendations are submitted shall by written order approve such recommendations with such exceptions as he may deem proper, by subscribing his name to each such list when corrected to conform to his conclusions upon such recommendations. One of such lists shall thereafter be filed permanently of record in such court and the duplicate list shall be sent by the clerk of such court to the Commissioner of Immigration and Naturalization.

(c) The provisions of section 398 of this title requiring the examination of the petitioner and witnesses under oath before the court and in the presence of the court shall not apply in any case where a designated examiner or officer has conducted the preliminary hearing authorized by this subdivision; except that the court may, in its discretion, and shall, upon demand of the petitioner, require the examination of the petitioner and the witnesses under oath before the court and in the presence of the court. (June 8, 1926, c. 502, 44 Stat. 709; June 10, 1933, Ex. Or. 6166, § 14.)

§ 399b. (a) Certificate of citizenship and declaration of intention; loss; mutilation or destruction; new certificate or declaration. If any certificate of citizenship issued to any citizen, or any declaration of intention furnished to any declarant, under the naturalization laws, is lost, mutilated, or destroyed, the citizen or declarant may, upon the payment to the commissioner of a fee of $1, make application (accompanied by two photographs of the applicant) to the Commissioner of Immigration and Naturalization for a new certificate or declaration. If the commissioner finds that the certificate or declaration is lost, mutilated, or destroyed, he shall issue to the applicant a new certificate or declaration with one of such photographs of the applicant affixed thereto: *Provided*, That an alien veteran as defined in subdivision (a) of section 241 of this title, shall not be required to pay the fee required by this subdivision.

(b) Special certificate of citizenship; issuance; use. Upon payment to the Commissioner of Immigration and Naturalization of a fee of $5, the commissioner shall issue, for any naturalized citizen, a special certificate of citizenship, with a photograph (furnished by such citizen) affixed thereto, for use by such citizen only for the purpose of obtaining recognition as a citizen of the United States by the country of former allegiance of such citizen. Such certificate, when issued, shall be furnished to the Secretary of State for transmission by him to the proper authority in such country of former allegiance.

(c) New certificate of citizenship on change of name of naturalized citizen. If the name of any naturalized citizen has, subsequent to naturalization, been changed by order of a court of competent jurisdiction, or by marriage, the citizen may, upon the payment to the commissioner of a fee of $5, make application (accompanied by two photographs of the applicant) for a new certificate of citizenship in the new name of such citizen. If the commissioner finds the name of the applicant to have been changed as claimed he shall issue to the applicant a new certificate with one of such photographs of the applicant affixed thereto.

(d) Certifications of naturalization records; authorization; admissibility as evidence. The Commissioner of Immigration and Naturalization is authorized to make and issue, without fee, certifications of any part of the naturalization records of any court, or of any certificate of citizenship, for use in complying with any statute, State or Federal, or in any judicial proceeding. Any such certification shall be admitted in evidence equally with the original from which such certification was made in any case in which the original thereof might be admissible as evidence. No such certification shall be made by any clerk of court except upon order of the court. (June 29, 1906, c. 3592, § 32, as added Mar. 2, 1929, c. 536, § 9, 45 Stat. 1515; May 25, 1932, c. 203, § 4, 47 Stat. 165; June 10, 1933, Ex. Or. 6166, § 14; Apr. 19, 1934, c. 154, §§ 2, 4, 48 Stat. 597.)

§ 399c. (a) Certificate of citizenship; issuance to adult claiming citizenship through naturalized parent or husband; procedure; effect. Any individual over twenty-one years of age who claims to have derived United States citizenship through the naturalization of a parent, or a husband, may, upon the payment of a fee of $5, make application to the Commissioner of Immigration and Naturalization, accompanied by two photographs of the applicant, for a certificate of citizenship. Upon proof to the satisfaction of the commissioner that the applicant is a citizen and that the alleged citizenship was derived as claimed, and upon taking and subscribing to, before a designated representative of the Immigration and Naturalization Service within the United States, the oath of allegiance required by the naturalization laws of a petitioner for citizenship, such individual shall be furnished a certificate of citizenship by the commissioner, but only if such individual is at the time within the United States. In all courts, tribunals, and public offices of the United States, at home and abroad, of the District of Columbia, and of each State, Territory, or insular possession of the United States, the certificate of citizenship issued under this section shall have the same effect as a certificate of citizenship issued by a court having naturalization jurisdiction.

(h) Prohibited acts under section; penalties. Any person who (1) knowingly issues or is a party to the issuance under this section of a certificate of citizenship not authorized by the provisions of this section; or (2) demands, charges, collects, or receives any other or additional fees or moneys under this section except the fees and moneys herein specified; or (3) knowingly certifies that an applicant, affiant, or witness named in an affidavit, application, or certificate of citizenship or other paper or writing required to be executed under the provisions of this section, personally appeared before him, and was sworn thereto or acknowledged the execution thereof or signed the same when in fact such petitioner, affiant, or witness did not personally appear before him or was not sworn thereto, or did not execute the same, or did not acknowledge the execution thereof; or (4) procures a certificate of citizenship under this section, knowing or having reason to believe that he is not entitled thereto, shall be guilty of a felony and on conviction thereof shall be fined not more than $5,000, or imprisoned not more than five years, or both.

(c) Application of certain sections of Title 18. The provisions of sections 135, 137, 138, 139, 140, 141, 142, and 143 of Title 18, shall apply in respect of proceedings and certificates of citizenship under this section in the same manner and to the same extent, including penalties, as they apply in respect of proceedings and certificates of citizenship under the naturali-

zation laws. (June 29, 1906, c. 3592, § 33; Mar. 2, 1929, c. 536, § 9, 45 Stat. 1515; May 25, 1932, c. 203, § 5, 47 Stat. 166; June 10, 1933, Ex. Or. 6166, § 14; Apr. 19, 1934, c. 154, § 2, 48 Stat. 597.)

§ 399d. Fees collected under sections 399b and 399c; disposition. Fees collected by the Commissioner of Immigration and Naturalization under sections 399b and 399c of this title shall be paid over to and deposited in the Treasury and accounted for by the commissioner to the General Accounting Office in the same manner as other naturalization fees received by the Immigration and Naturalization Service. (June 29, 1906, c. 3592, § 34; Mar. 2, 1929, c. 536, § 9, 45 Stat. 1516; June 10, 1933, Ex. Or. 6166, § 14.)

§ 399e. Annual report by Commissioner of Immigration and Naturalization. The Commissioner of Immigration and Naturalization is authorized and directed to prepare from the records in the custody of the Immigration and Naturalization Service a report upon those heretofore seeking citizenship to show by nationalities their relation to the numbers of annually arriving aliens and to the prevailing census populations of foreign born, their economic, vocational, and other classification, in statistical form, with analytical comment thereon, and to prepare such report annually thereafter. (Mar. 2, 1929, c. 536, § 10, 45 Stat. 1516; June 10, 1933, Ex. Or. 6166, § 14.)

§ 399f. Counsel's fee. In all naturalization proceedings in which an alien applying for certificate of citizenship is represented by counsel, there is hereby established a limit of $25 for counsel's fees, except where legal action before a court requires extended legal service when the court may approve a reasonable fee in excess of $25. (Apr. 19, 1934, c. 154, § 5, 48 Stat. 598.)

DUTIES OF CLERKS OF COURTS; NATURALIZATION FEES

§ 400. Duties of clerks of courts; filing declaration of intention; forwarding duplicate certificate and names of aliens denied citizenship; penalty. It shall be the duty of the clerk of each and every court exercising jurisdiction in naturalization matters to keep and file a duplicate of each declaration of intention made before him and to send to the Immigration and Naturalization Service at Washington, within thirty days after the issuance of a certificate of citizenship, a duplicate of such certificate, and to make and keep on file in his office a stub for each certificate so issued by him, whereon shall be entered a memorandum of all the essential facts set forth in such certificate. It shall also be the duty of the clerk of each of said courts to report to the said service, within thirty days after the final hearing and decision of the court, the name of each and every alien who shall be denied naturalization, and to furnish to said service duplicates of all petitions within thirty days after the filing of the same, and certified copies of such other proceedings and orders instituted in or issued out of said court affecting or relating to the naturalization of aliens as may be required from time to time by the said service.

In case any such clerk or officer acting under his direction shall refuse or neglect to comply with any of the foregoing provisions of this section he shall forfeit and pay to the United States the sum of $25 in each and every case in which such violation or omission occurs, and the amount of such forfeiture may be recovered by the United States in an action of debt against such clerk. (June 29, 1906, c. 3592, § 12, 34 Stat. 599; June 10, 1933, Ex. Or. 6166, § 14.)

§ 401. Same; responsibility for blank certificates of citizenship; return of defaced certificates; penalty. Clerks of courts having and exercising jurisdiction in naturalization matters shall be responsible for all blank certificates of citizenship received by them from time to time from the Immigration and Naturalization Service, and shall account for the same to the said service whenever required so to do by such service. No certificate of citizenship received by any such clerk which may be defaced or injured in such manner as to prevent its use as herein provided shall in any case be destroyed, but such certificate shall be returned to the said service; and in case any such clerk shall fail to return or properly account for any certificate furnished by the said service, as herein provided, he shall be liable to the United States in the sum of $50, to be recovered in an action of debt, for each and every certificate not properly accounted for or returned. (June 29, 1906, c. 3592, § 12, 34 Stat. 599; June 10, 1933, Ex. Or. 6166, § 14.)

§ 402. Fees; disposition of; clerical assistance. The clerk of each and every court exercising jurisdiction in naturalization cases shall charge, collect, and account for the following fees in each proceeding:

(1) For receiving and filing a declaration of intention and the issuing of a duplicate thereof, $2.50;

(2) For making, filing, and docketing a petition for citizenship, and issuing a certificate of citizenship if the issuance of such certificate is authorized by the court, and for the final hearing on the petition, $5.

Except as hereinafter mentioned in this section, the clerk of any court collecting such fees is authorized to retain one-half of the fees collected by him in such naturalization proceeding; the remaining one-half of the naturalization fees in each case collected by such clerks, respectively, shall be accounted for in their quarterly accounts, which they are required to render the Immigration and Naturalization Service and paid over to such service within thirty days from the close of each quarter in each and every fiscal year, and the moneys so received shall be paid over to the disbursing clerk of the Department of Labor, who shall thereupon deposit them in the Treasury of the United States, rendering an account therefor quarterly to the General Accounting Office, and the said disbursing clerk shall be held responsible under his bond for said fees so received.

In addition to the fees herein required, the petitioner shall, upon the filing of his petition to become a citizen of the United States, deposit with and pay to the clerk of the court a sum of money sufficient to cover the expenses of subpœnaing and paying the legal fees of any witnesses for whom he may request a subpœna, and upon the final discharge of such witnesses they shall receive, if they demand the same from the clerk, the customary and usual witness fees from the moneys which the petitioner shall have paid to such clerk for such purpose, and the residue, if any, shall be returned by the clerk to the petitioner.

The clerks of courts exercising jurisdiction in naturalization proceedings shall be permitted to retain one-half of the fees in any fiscal year up to the sum of $3,000, and all fees received by such clerks in naturalization proceedings in excess of such amount shall be accounted for and paid over to said service as in case of other fees to which the United States may be entitled under the provisions of this chapter.

The clerks of the various courts exercising jurisdiction in naturalization proceedings shall pay all additional clerical force that may be required in performing the duties imposed by the naturalization laws upon the clerks of courts from fees received by such clerks in naturalization proceedings.

Payment for the additional clerical assistance herein authorized shall be in the manner and under such regulations as the Secretary of Labor may prescribe. In case the clerk of any court exercising naturalization jurisdiction collects fees in excess of the sum of $6,000 in any fiscal year the Secretary of Labor may allow salaries, for naturalization purposes only, to pay for clerical assistance, to be selected and employed by that clerk, additional to the clerical force, for which clerks of courts are required by this section to pay from fees received by such clerks in naturalization proceedings, if in the opinion of said Secretary the naturalization business of such clerk warrants further additional assistance.

The whole amount allowed for a fiscal year to the clerk of a court and his assistants from naturalization fees and any appropriation made for carrying on the work of the Immigration and Naturalization Service shall be based upon and not exceed the one-half of the gross receipts of said clerk from naturalization fees during the fiscal year immediately preceding, unless the naturalization business of the clerk of any court during the year shall be in excess of the naturalization business of the preceding year, in which event the amount allowed may be increased to an amount equal to one-half the estimated gross receipts of the said clerk from naturalization fees during the current fiscal year. The provisions of this section relating to the retention as compensation by clerks of courts of naturalization fees shall not apply to clerks of United States courts who by law are to receive a salary in lieu of fees or other emoluments. (June 29, 1906, c. 3592, § 13, 34 Stat. 600; June 25, 1910, c. 401, § 1, 36 Stat. 829; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737; June 12, 1917, c. 27, § 1, 40 Stat. 171; Feb. 26, 1919, c. 49, §§ 1, 2, 40 Stat. 1182; Feb. 11, 1921, c. 46, 41 Stat. 1099; Mar. 4, 1921, c. 161, § 1, 41 Stat. 1412; June 10, 1921, c. 18, § 304, 42 Stat. 24; Mar. 2, 1929, c. 536, § 7 (a), 45 Stat. 1514; June 10, 1933, Ex. Or. 6166, § 14; Apr. 19, 1934, c. 154, § 1, 48 Stat. 597.)

Effective July 1, 1935, this section was affected by Act June 26, 1934, c. 756, § 19, 48 Stat. 1232. See section 725r, of Title 31.

§ 402a. Fees; disposition; application of section 567 of Title 28. Notwithstanding the provisions of section 567 of Title 28, all fees received by the clerks of court to which such section applies for services rendered in naturalization proceedings shall be paid over to the Immigration and Naturalization Service within thirty days from the close of each quarter in each fiscal year and the moneys so received shall be disposed of in the same manner as provided in section 402 of this title. (Mar. 2, 1929, c. 536, § 7 (b), 45 Stat. 1515; June 10, 1933, Ex. Or. 6166, § 14.)

§ 403. Same; when United States is at war. During the time when the United States is at war no clerk of a United States court shall charge or collect a naturalization fee from an alien in the military service of the United States for filing his petition or issuing the certificate of naturalization upon admission to citizenship, and no clerk of any State court shall charge or collect any fee for this service unless the laws of the State require such charge to be made, in which case nothing more than the portion of the fee required to be paid to the State shall be charged or collected. A full accounting for all of these transactions shall be made to the Immigration and Naturalization Service in the manner provided by section 402 of this title. (June 29, 1906, c. 3592, § 4 (7); May 9, 1918, c. 69, § 1, 40 Stat. 544; June 10, 1933, Ex. Or. 6166, § 14.)

§ 404. Declarations of intention and petitions as records of court; reference in certificate to record. The declarations of intention and the petitions for naturalization shall be bound in chronological order in separate volumes, indexed, consecutively numbered, and made part of the records of the court. Each certificate of naturalization issued shall bear upon its face, in a place prepared therefor, the volume number and page number of the petition whereon such certificate was issued, and the volume number and page number of the stub of such certificate. (June 29, 1906, c. 3592, § 14, 34 Stat. 601.)

VALIDATING OR CANCELING NATURALIZATION CERTIFICATES

§ 405. Cancellation of certificates of citizenship fraudulently or illegally procured; aliens returning to country of nativity or residing permanently in foreign country; certified copy of order canceling certificate. It shall be the duty of the United States district attorneys for the respective districts, or the Commissioner of Immigration and Naturalization or Deputy Commissioner of Immigration and Naturalization, upon affidavit showing good cause therefor, to institute proceedings in any court having jurisdiction to naturalize aliens in the judicial district in which the naturalized citizen may reside at the time of bringing the suit, for the purpose of setting aside and canceling the certificate of citizenship on the ground of fraud or on the ground that such certificate of citizenship was illegally procured. In any such proceedings the party holding the certificate of citizenship alleged to have been fraudulently or illegally procured shall have sixty days personal notice in which to make answer to the petition of the United States; and if the holder of such certificate be absent from the United States or from the district in which he last had his residence, such notice shall be given by publication in the manner provided for the service of summons by publication or upon absentees by the laws of the State or the place where such suit is brought.

If any alien who shall have secured a certificate of citizenship under the provisions of this chapter shall, within five years after the issuance of such certificate, return to the country of his nativity, or go to any other foreign country, and take permanent residence therein, it shall be considered prima facie evidence of a lack of intention on the part of such alien to become a permanent citizen of the United States at the time of filing his application for citizenship, and, in the absence of countervailing evidence, it shall be sufficient in the proper proceeding to authorize the cancellation of his certificate of citizenship as fraudulent, and the diplomatic and consular officers of the United States in foreign countries shall from time to time, through the Department of State, furnish the Department of Justice with the names of those within their respective jurisdictions who have such certificates of citizenship and who have taken permanent residence in the country of their nativity, or in any other foreign country, and such statements, duly certified, shall be admissible in evidence in all courts in proceedings to cancel certificates of citizenship.

Whenever any certificate of citizenship shall be set aside or canceled, as herein provided, the court in which such judgment or decree is rendered shall make an order canceling such certificate of citizenship and shall send a certified copy of such order to the Immigration and Naturalization Service; and in case such certificate was not originally issued by the court making such order it shall direct the clerk of the court to transmit a copy of such order and judgment to the court out of which such certificate of citizenship shall have been originally issued. And it shall thereupon be the duty of the clerk of the court receiving such certified copy of the order and judgment of the court to enter the same of record and to cancel such original certificate of citizenship upon the records and to notify the Immigration and Naturalization Service of such cancellation.

The provisions of this section shall apply not only to certificates of citizenship issued under the provisions of sections 356, 357, 360, 362, 364, 365, 372 to 383, 386 to 394, 396 to 405, and 407 to 415 of this title, but to all certificates of citizenship which may have been issued prior to ninety days after June 29, 1906, by any court exercising jurisdiction in naturalization proceedings under prior laws. (June 29, 1906, c. 3592, § 15, 34 Stat. 601; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737; May 9, 1918, c. 69, § 1, 40 Stat. 544; June 10, 1933, Ex. Or. 6166, § 14.)

§ 406. Validation of certificates of naturalization granted prior to December 31, 1918. All certificates of naturalization granted by courts of competent jurisdiction prior to December 31, 1918, upon petitions for naturalization filed prior to January 31, 1918, upon declarations of intention filed prior to September 27, 1906, are declared to be valid insofar as the declaration of intention is concerned, but shall not be further validated or legalized by the provisions of this section. (May 9, 1918, c. 69, § 3, 40 Stat. 548.)

§ 407. Certificates of naturalization failing to show compliance with requirements of Act March 3, 1903, validated. Naturalization certificates issued after the time of the taking effect of Act March 3, 1903, Thirty-second Statutes, page 1222, which fail to show that the courts issuing said certificates complied with the requirements of section 39 of said Act, but which were otherwise lawfully issued, are declared to be as valid as though said certificates complied with said section. In all such cases applications shall be made for new naturalization certificates, and when the same are granted, upon compliance with the provisions of said Act of 1903, they shall relate back to the defective certificates, and citizenship shall be deemed to have been perfected at the date of the defective certificate. (June 29, 1906, c. 3624, § 1, 34 Stat. 630.)

NATURALIZATION FORMS

§ 408. Naturalization forms supplied courts on requisition; certificates to be consecutively numbered. The courts specified in sections 357 and 358 of this title shall, upon the requisition of the clerks of such courts, be furnished from time to time by the Immigration and Naturalization Service with such blank forms as may be required in the naturalization of aliens. All certificates of naturalization shall be consecutively numbered and printed on safety paper furnished by said bureau. (June 29, 1906, c. 3592, § 3, 34 Stat. 596; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737; June 10, 1933, Ex. Or. 6166, § 14.)

§ 409. Forms. Substantially the following forms shall be used in the proceedings to which they relate:

Declaration of Intention

(Invalid for all purposes seven years after the date hereof)

———, ss:

I, ——— ———, aged ——— years, occupation ———, do declare on oath (affirm) that my personal description is: color ———, complexion ———, height ———, weight ———, color of hair ——, color of eyes ———, other visible distinctive marks ———; I was born in ——— on the ——— day of ———, anno Domini ———; I now reside at ———; I emigrated to the United States of America from ——— on the vessel ———; my last foreign residence was ———. It is my bona fide intention to renounce forever all allegiance and fidelity to any foreign prince, potentate, state, or sovereignty, and particularly to ———, of which I am now a citizen (subject); I arrived at the (port) of ——— in the State (Territory or the District of Columbia) of ——— on or about the ——— day of ——— anno Domini ———; I am not an anarchist; I am not a polygamist nor a believer in the practice of polygamy; and it is my intention in good faith to become a citizen of the United States of America and to permanently reside therein. So help me God.

(Original signature of declarant) ——— ———.

Subscribed and sworn to (affirmed) before me this ——— day of ———, anno Domini ———.

——— ———.

[L. S.] (Official character of attestor.)

Petition for Naturalization

——— Court of ———

In the matter of the petition of ——— ——— to be admitted as a citizen of the United States of America

To the ——— Court:

The petition of ——— ——— respectfully shows:

First. My full name is ——— ———.

Second. My place of residence is number ——— street, city of ———, State (Territory or the District of Columbia) of ———.

Third. My occupation is ———.

Fourth. I was born on the ——— day of ——— at ———.

Fifth. I emigrated to the United States from ———, on or about the ——— day of ———, anno Domini ———, and arrived at the port of ———, in the United States, on the vessel ———.

Sixth. I declared my intention to become a citizen of the United States on the ——— day of ——— at ———, in the ——— court of ———.

Seventh. I am ——— married. My wife's name is ——— ———. She was born in ——— and now resides at ———. I have ——— children, and the name, date, and place of birth and place of residence of each of said children is as follows: ———; ———; ———.

Eighth. I am not a disbeliever in or opposed to organized government or a member of or affiliated with any organization or body of persons teaching disbelief in organized government. I am not a polygamist nor a believer in the practice of polygamy. I am attached to the principles of the Constitution of the United States and it is my intention to become a citizen of the United States and to renounce absolutely and forever all allegiance and fidelity to any foreign prince, potentate, state, or sovereignty, and particularly to ———, of which at this time I am a citizen (or subject), and it is my intention to reside permanently in the United States.

Ninth. I am able to speak the English language.

Tenth. I have resided continuously in the United States of America for a term of five years at least immediately preceding the date of this petition, to wit, since ———, anno Domini ———, and in the State (Territory or the District of Columbia) of ——— for one year at least next preceding the date of this petition, to wit, since ——— day of ———, anno Domini ———.

Eleventh. I have not heretofore made petition for citizenship to any court. (I made petition for citizenship to the ——— court of ——— at ———, and the said petition was denied by the said court for the following reasons and causes, to wit, ———, and the cause of such denial has since been cured or removed.)

Attached hereto and made a part of this petition are my declaration of intention to become a citizen of the United States and the certificate from the Department of Labor required by law. Wherefore your petitioner prays that he may be admitted a citizen of the United States of America.

Dated ———.

(Signature of petitioner) ——— ———.

———, ss:

——— ———, being duly sworn, deposes and says that he is the petitioner in the above-entitled proceeding; that he has read the foregoing petition and knows the contents thereof; that the same is true of its own knowledge, except as to matters therein stated to be alleged upon information and belief, and that as to those matters he believes it to be true.

Subscribed and sworn to before me this ——— day of ———, anno Domini ———.

[L. S.] ———,

Clerk of the ——— Court.

Affidavit of Witnesses

——— Court of ———

In the matter of the petition of ——— ——— to be admitted a citizen of the United States of America

———, ss:

——— ———, occupation ———, residing at ———, and ———, occupation ———, residing at ———, each being severally, duly, and respectively sworn, deposes

and says that he is a citizen of the United States of America; that he has personally known ——— ———, the petitioner above mentioned, to be a resident of the United States for a period of at least five years continuously immediately preceding the date of filing his petition, and of the State (Territory or the District of Columbia) in which the above-entitled application is made for a period of ——— years immediately preceding the date of filing his petition; and that he has personal knowledge that the said petitioner is a person of good moral character, attached to the principles of the Constitution of the United States, and that he is in every way qualified, in his opinion, to be admitted as a citizen of the United States.

——— ———.

——— ———.

Subscribed and sworn to before me this ——— day of ———, nineteen hundred and ———.

[L. S.] ——— ———,

(Official character of attestor.)

Certificate of Naturalization

Number ———.

Petition, volume ———, page ———.

Stub, volume ———, page ———.

(Signature of holder) ——— ———.

Description of holder: Age, ———; height, ———; color, ———; complexion, ———; color of eyes, ———; color of hair, ———; visible distinguishing marks, ———. Name, age, and place of residence of wife, ———, ———, ———. Names, ages, and places of residence of minor children, ———, ———, ———; ———, ———, ———; ———, ———, ———.

———, ss:

Be it remembered, that at a ——— term of the ——— court of ———, held at ——— on the ——— day of ———, in the year of our Lord nineteen hundred and ———, ———, who previous to his (her) naturalization was a citizen or subject of ———, at present residing at number ——— street, ——— city (town), ——— State (Territory or the District of Columbia), having applied to be admitted a citizen of the United States of America pursuant to law, and the court having found that the petitioner had resided continuously within the United States for at least five years and in this State for one year immediately preceding the date of the hearing of his (her) petition, and that said petitioner intends to reside permanently in the United States, had in all respects complied with the law in relation thereto, and that —he was entitled to be so admitted, it was thereupon ordered by the said court that —he be admitted as a citizen of the United States of America.

In testimony whereof the seal of said court is hereunto affixed on the ——— day of ———, in the year of our Lord nineteen hundred and ———, and of our independence the ———.

[L. S.] ——— ———,

(Official character of attestor.)

Stub of Certificate of Naturalization

No. of certificate, ———.

Name ——— ———; age, ———.

Declaration of intention, volume ———, page ———.

Petition, volume ———, page ———.

Name, age, and place of residence of wife, ———, ———, ———.

Names, ages, and places of residence of minor children, ———, ———, ———

proceeding, shall be fined not more than $5,000, or imprisoned not more than five years, or both. (June 29, 1906, c. 3592, § 23, 34 Stat. 603.)

§ 415. Limitation of prosecutions for crimes. No person shall be prosecuted, tried, or punished for any crime arising under the provisions of sections 356, 357, 360, 362, 364, 365, 372, 383, 386 to 394, 396 to 405, and 407 to 415 of this title, unless the indictment is found or the information is filed within five years next after the commission of such crime. (June 29, 1906, c. 3592, § 24, 34 Stat. 603.)

§ 416. Prior laws in effect for prosecution of offenses against naturalization laws. For the purposes of the prosecution of all crimes and offenses against the naturalization laws of the United States which may have been committed prior to May 9, 1918, the statutes and laws then in force and since repealed shall remain in full force and effect. (May 9, 1918, c. 69, § 2, 40 Stat. 547.)

AMBASSADORS

See Title 22, FOREIGN RELATIONS AND INTERCOURSE.

AMERICAN LEGION

See Title 36, PATRIOTIC SOCIETIES AND OBSERVANCES.

AMERICAN NATIONAL RED CROSS

See Title 36, PATRIOTIC SOCIETIES AND OBSERVANCES.

AMERICAN PRINTING HOUSE FOR THE BLIND

See Title 20, EDUCATION.

AMERICAN WAR MOTHERS

See Title 36, PATRIOTIC SOCIETIES AND OBSERVANCES.

ANCHORAGE REGULATIONS

See Title 33, NAVIGATION AND NAVIGABLE WATERS.

ANIMALS

See Title 7, AGRICULTURE; Title 16, CONSERVATION; Title 45, RAILROADS.

ANTITRUST LAWS

See Title 15, COMMERCE AND TRADE.

APPORTIONMENT

See Title 2, The CONGRESS.

APPROPRIATIONS

See Title 31, MONEY AND FINANCE.